

M/s Gangwar Industries v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 February 2020 · WRIT - C No. 6655 of 2020 · **Writ disposed; petitioner directed to appear before the Executive Engineer on the pending clause 6.5 complaint with bills and payment receipts; Engineer to pass an appropriate order within one month in accordance with law; no coercive action on the 29.1.2020 recovery citation during that period.**

HEADNOTE

Where a consumer had already invoked clause 6.5 of the Electricity Supply Code, 2005 before the Executive Engineer against inconsistent post-disconnection bills, and a recovery certificate was later issued while that complaint remained pending, the High Court declined to examine the arrears on the writ. It disposed of the petition by directing the consumer to appear before the Engineer with bills and payment receipts for verification, requiring an order in accordance with law within one month, and staying coercive action on the recovery citation for that period.

FACTUAL SUMMARY

M/s Gangwar Industries challenged a recovery certificate dated 29 January 2020 for Rs. 22,13,873 as electricity dues. Permanent connection no. 300000904 was disconnected on 6 June 2018. Subsequent bills for May–July 2018 and December 2019 ranged from about Rs. 4.86 lakh to about Rs. 13 lakh, yet recovery exceeded Rs. 22 lakh. Licensee's counsel stated the petitioner had already approached the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005, the complaint was pending, and documents sought by the Engineer had not been furnished.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending billing complaint before Executive Engineer

HOLDING

Where the consumer had already approached the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005 and that complaint remained pending, the Court declined to adjudicate the disputed electricity arrears or the recovery certificate on the writ and disposed of the petition by directing the consumer to appear before the Engineer with bills and payment receipts for verification, requiring the Engineer to pass an appropriate order within one month in accordance with law, and staying coercive action on the recovery citation for that period. ¶ 1

PRINCIPLE TAGS

6.5-pending-complaint-writ-remitted

The already-pending clause 6.5 proceeding was treated as the proper forum for verifying inconsistent post-disconnection bills and the recovery certificate; writ relief was confined to a time-bound direction to decide and a stay of coercive recovery meanwhile. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILLED ARREARS AND OF THE RECOVERY CERTIFICATE DATED 29.1.2020

left to the Executive Engineer on the pending clause 6.5 complaint ¶ 1